sonem 25; ad Att. 8.11.4; (= Sjögren II p. 170); Lucr. 5.1140; Sen. Ep. 23; etc. Obviously Cic. reminiscence.

p.93.21 **sedata iurgiorum materia.** Cf. Just. Phil. 11.5: sed nec suis, qui apti regno videbantur, pepercit, ne qua materia seditionis, procul se agente, in Macedonia remaneret; ibid. 31.5: neque sedem **belli** Graeciam sibi placere cum Italia uberior **materia** sit; Curt. Ruf. 6.6.12: Igitur, ne in seditionem res verteretur, otium interpellandum erat **bello,** cuius **materia** opportune alebatur.

p.93.21–22 **vicinae gentes iam concordabant.** De vicinae gentes are not specified further by Amm. They are the same men as the above-mentioned finitimi. From the use of discordiae, iurgia, and concordare one may conclude that the dispute was just a quarrel between neighbours. The immediate cause is not mentioned either. Probably a disagreement about land, grazing-fields or something similar. The following peoples could be considered neighbours: Burgundi, Alamanni, Marcomanni, at least at **this** time.
*b* Cf. 28.6.20: cum Romano deinde Palladius concordabat (= to reach a complete agreement). Similarly here: Iust. Phil. 27.3.6: Victo Antiocho, cum Eumenes maiorem partem Asiae occupasset, ne tunc quidem fratres ... concordare potuerunt; Dig. 24.1.32.19: concordantibus viro et uxore.

p.93.22 **turpissimus ducis Romani digressus.** Cf. 16.11. 14–15.

p.93.22–23 **ferociam natura conceptam** = innate ferocity.

p.93.23 **auxit in maius.** Cf. ad 16.4.1 (p. 74.22).

## XII, 17

p.93.23–24 **alio itidem modo res est adgravata Romana**
*a* Note the pleasantly narrative style of this paragraph, of which, fortunately, there are quite a few in Amm.
*b* **itidem** does not differ here, I believe, from: et, quoque. For the use of **itidem(que)** and **itemque** as particula copulativa cf. Blomgren (op. cit. II) p. 34 sq. The comparative meaning of these verbs is reduced in late Latin; which also explains their frequent abundant use, e.g. Mulomed. Chir. 355 (= Oder p. 108): .... usque eo, ut exulcerentur extrema, omnia cacumina narum **itemque et** labia.
*c* **adgravata.** Cf. Liv. 4.12.7: unum afuit bellum externum; quo si adgravatae **res** essent etc.



*a* **vinculo pacis adstricti.** The connection of **vinculum** (– **a**) and **adstringere** occurs fairly often, literally as well as metaphorically. With legal writers we often find **adstringere** (= to oblige, to commit oneself). When, however, one compares for instance Cic. De off. 3.31 (111): nullum enim vinculum ad adstringendam fidem iure iurando maiores artius esse voluerunt, as well as many other comparable passages of this author, I believe one may safely assume an (un)conscious influence of the reading of Cicero. p.93.24
*b* Cf. 31.5.1: At vero Thervingi, iam dudum transire permissi, prope ripas etiam tum vagabantur, duplici impedimento **adstricti;** 25.3.8.

**regii duo fratres.** With legal writers **regius** is used only: 1° of the Roman kings. 2° of the Emperor. The same is true of **regnare.** Bur fot the rest is reges, especially in the connection **reges socii,** generally used. Cf. Willems (op. cit. I) p. 362 for their position, with the lit. quoted there. Cf. et. Madvig, die Verfassung und Verwaltung des Römischen Staates II (1882) p. 85 sq. p.93.24

*a* **nec tumultuare nec commoveri sunt ausi.** Note the placing of sunt (clausula I). p.93.24–25
*b* The usual form is: tumultuari. **Tumultuare** may be an archaism (Plautus). The active form is rare. It does not here have a technical meaning (Cf. **tumultus** Krebs Antib. II p. 682 with quoted lit.). The verb does not occur in Vegetius r.m., unlike **tumultus** and **tumultuarius. Tumultuarius** adj. in Amm. 25.6.4; 26.8.7; 31.5.9 in the usual meaning (precipitate, disorderly, unprepared). **Tumultuosus:** 14.7.9. **Tumultuarie:** 24.2.18.
*c* Cf. Cic. Verr. 5.8: ut nemini minus expediret ullum in Sicilia **tumultum** aut bellum **commoveri.**

*a* **Gundomado.** Cf. ad 14.10.1 (= II p. 96). p.93.26
*b* **potior.** Cf. 19.3.1: Ursicinus ... auctoritatis tunc in agendo milite potioris.

**frideique firmioris.** The genit, qualitatis is still frequently used in late Latin, in literature as well as in the vernacular. Cf. Hofm.-Leum. (op. cit. I) p. 398 sq. (with lit.); Hoogterp, Les vies des pères du Jura (1935) p. 46 § 46 (with lit.); Kalb. römische Rechtssprache[2] (1961) p. 39; Hedfors (op. cit. I) p. 84; Vulg. Matth. 8.26: Quid timidi estis, modicae fidei? Alliteration! p.93.27
**per insidias interempto.** Note the alliteration of **p** and **in.** Previously: praeterito impetraverant (V imperaverat EBG impetraverant). The version given by E B G is justified already by the 3-fold alliteration. For **per modale** cf. Reinhardt (op. cit. I) p. 41 sq.



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p.93.28 **conspiravit.** In its usual unfavourable meaning, which dominates in post-classical Latin, as nearly always with legal authors. Cf. Krebs Antib. I p.343 (with lit.). Cf. et. ad 14.5.6.
**Conspiratio** in Amm. 14.1.6 and 15.5.13, both times with its usual unfavourable meaning.
**confestim.** Cf. ad 15.1.3 (= III p.9).

p.93.28 **Vadomarii plebs.**
*a* Cf. ad 14.10.1 (= II p.96) for **Vadomarius.**
*b* **plebs.** The fact that this typically Roman word is used to indicate a **Teutonic people** clearly shows that nothing has remained here of the original constitutional meaning, nor of the disparaging meaning derived from that. Here it is completely synonymous with: populus. Cf. 31.4.4: verum pubiscente fide gestorum (cf. 31.4.2–3), cui robur adventus gentilium (= barbaric) addiderat legatorum, precibus et obtestatione petentium, citra flumen suscipi **plebem** extorrem; Colum. 9.11.1: duas vel tres alveorum **plebes** in unum contribuere licebit (= swarms, "peoples"); Veget. r.m. 1.3:. . . . numquam credo potuisse dubitari aptiorem armis **rusticam plebem** (= Lang p.7) (but ibid. 2.24 in the meaning of: the masses, the general public); Souter p.306. In this meaning not used by legal authors.

p.93.29 **ut adserebat.** In the meaning: **to assert** generally fairly frequent in late Latin. Cf. Thes. II p.865 sq.; Krebs Antib. I p.207; Veget. 3.6: Qui rem militarem studiosius didicerunt, **adserunt** plura in itineribus quam in ipsa acie pericula solere contingere; Anon. Ravennas 1.8 (Schnetz p.8): que Armeniorum terra infertilis esse ascribitur, immo magis prae omnibus orientalibus regionibus frigida esse clarificatur et plus montuosa magis quam plana asscritur; ibid. 1.5 (Schnetz. p.4).
**bella cientium barbarorum.** Cf. Liv. 5.37; Vell. 2.54. In the choice of this linking of words, which is found more often, (b. ciere) the alliteration has also been a factor.

## XII, 18

p.94.2 *a* **nec de rigore animorum quicquam remittentibus.** Pighi, referring to Cic. Phil. 13.1: si aliquid de summa gravitate Pompeius, multum de cupiditate Caesar remisisset, rightly observes that this expression is not a vulgarism, as is asserted by Fesser (op. cit. I) p.31 (cf. Hofm. -Leum. p.392.22) Cf. et. 31.7.15: nec de **rigore** genuino quidquam remittebant.
*b* **vigore** Hermann. Cornelissen. Cf. Pighi N. Stud. Amm. (1936) p.118 (note 1): "Quanto a **rigore** si ricordi la confusione del b. lat. tra **vigor** e **rigor**; cf. Cypr. hab. virg. 17 increpans vigore censoris et iudicis."



**subito signifer.** p.94.3
*a* Note the alliteration.
*b* In 25.5.8 there is mention of a: Iovianorum signifer. For the banners cf. ad 15.5.16 (= III p.96). Also: Grosse Mil. (op. cit. I) p.124 sq.; Müller Mil. p.609 (op. cit. I). Considering the deliberate carelessness of Amm. in indicating ranks, offices, etc. it is possible that by **signifer** is meant a **draconarius** or a **vexillifer.** Of these 3 the **signifer,** in the actual sense of the word is the lowest in rank.
**perge** etc. For the speech given by the **signifer** cf. 16.12.13 and Pighi N. Stud. Amm. p.117 sq.

**felicissime . . . . fortuna.** Cf. ad 16.12.13. The combination of **felix** and p.94.3-4
**fortuna** is not accidental and not only furthered by the alliteration. **Felix** in connection with monarchs and generals has religious associations.

**fortuna prosperior.** The comparativus with greatly reduced meaning. Cf. p.94.4
ad 14.6.12 (= I p.96).

*a* **tandem . . . sentimus.** The historic authenticity of the **incitement** (see p.94.4-5
above) need not be doubted. But style and contents are Amm.'s. **Tandem** and **et consilia** are clearly sneers at Constantius.
*b* **per te:** in your person.
*c* Note the personification! Cf. Blomgren (op. cit. II) p.83 sq.
*d* **militare.** This completely classical verb **may** be one of Amm.'s flowers of speech. In this context it is entirely synonymous with: pugnare. It should, however, be pointed out that Amm. is also familiar with this word in a different meaning: to be in the service of the court. (cf. Aug. conf. 8.6.14: Ponticianus quidam, civis noster in quantum Afer, praeclare in palatio militans . . .; for **palatium** cf. ad 14.5.8 (= I p.129)). Cf. Souter p.252; Heum.-Seckel p.342. In this way **militia** and **militaris** are also used. Cf. et. Claud. 7.96 sq.; 28.594 sq.; 45.24 sq. (about the hystrix):

Et consanguineis hastilibus asperat armos,
**Militat** omne ferae corpus, vibrataque rauco
Terga fragore sonant.

(here also = pugnat).

*a* **praei nos** G i praevius. Clark praei nos. Clark's conjecture does not p.94.5
quite satisfy me. It seems better to me to adhere to the version of V A Gelenius (adopted by Pighi and before that by Heraeus) and to read after **fortis** a comma instead of a :, so that **experieris** introduces the principal sentence. (In G's version praevius is preceded by **i**).



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